

M/s Nutek Overseas Pvt. Ltd. v. Pachimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 11 October 2017 · Writ-C No. 47340 of 2017 · Writ-C No. 47340 of 2017 · **Writ disposed; petitioner left to apply under clause 6.14.**

HEADNOTE

Supply having been disconnected in 2015 for non-payment, the consumer sought time from the High Court to deposit the arrears. The Division Bench declined to grant that facility on the writ and disposed of the petition, leaving the petitioner to move an application under clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The electricity supply of M/s Nutek Overseas Pvt. Ltd. was disconnected in 2015 for non-payment of dues. The company petitioned the Allahabad High Court for permission to deposit the arrears and for some time to pay. Counsel for Pachimanchal Vidyut Vitran Nigam Ltd. stated that the petitioner could move an application under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Division Bench disposed of the writ, leaving that remedy open.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for arrears after disconnection

HOLDING

A writ seeking time to deposit dues after disconnection for non-payment is not granted on the merits; the consumer is left to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated clause 6.14 as the proper channel for seeking time to pay disconnected-supply arrears and refused to grant that facility itself on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO INSTALMENTS OR RESTORATION OF SUPPLY

No determination of the arrears, of whether instalments should be allowed, or of reconnection; those matters were left to a clause 6.14 application. ¶ 1